

The U.P. Basic Education Provident Fund Rules, 1975

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State of Uttar Pradesh - Act

The U.P. Basic Education Provident Fund Rules, 1975

UTTAR PRADESH

India

The U.P. Basic Education Provident Fund Rules, 1975

Rule THE-U-P-BASIC-EDUCATION-PROVIDENT-FUND-RULES-1975 of 1975

Published on 19 July 1975

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The U.P. Basic Education Provident Fund Rules, 1975

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1.

Short title.

- These Rules may be called the Uttar Pradesh Basic Education Provident Fund Rules, 1975.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Uttar Pradesh Basic Education Act, 1972;

(b)

"appointing authority" means the authority specified in Column 2 of the Schedule to Uttar Pradesh Basic Education Staff Rules, 1973;

(c)

"Board" means the Uttar Pradesh Board of Basic Education;

(d)

"employee" means every teacher, officer and other employee appointed by the Board under sub-section (1) of Section 6 or transferred to the Board under sub-section (1) of Section 9 of the Act;

(e)

"Interest" means interest payable on a deposit in the Provident Fund at the rates fixed by the State Government from time to time;

(f)

"Pay" shall have the meaning assigned to it under sub-rule (21) of Rule 9 of the Fundamental Rules, Vol. II, Parts II - IV;

(g)

"Subscriber" means an employee who is entitled to subscribe to Provident Fund established under Rule 3.

3.

Establishment of Provident Fund.

- The Board shall establish and maintain a Provident Fund for its employees.

[4. Contributions to the Provident Fund. - (1) Every permanent employee shall subscribe to the Provident Fund every month at a rate which is not less than 10 percent of his pay and does not exceed such rate as may from time to time be prescribed by the Board with the previous approval of the State Government. The amount of subscriptions shall be expressed in whole rupees.

(2)

The amount to be subscribed by an employee under sub-rule (1) shall be deducted from his pay and shall be at once credited to the Provident Fund established under Rule 3.

(3)

The Board shall make a contribution equal to one-half of the amount of the deduction from pay under sub-rule (2) :

Provided that such contribution shall in no case exceed an amount equal to one-twentieth of the pay of the employee :

Provided further that the Board shall make no contribution to the Provident Fund in respect of employees covered either by the Pension Regulations of the respective Nagar Mahapalikas or the Zila Parishad Employees' Retirement Rules, 1972.]

[Substituted by Notification No. 4585/XV(5)-480-74-UPA-34-1972-Rule-1975-AM(1)-78, dated 10.7.1979 (w.e.f. 10.7.1979).]

5.

Deposit of contributions.

(1)

Subject to any directions of the State Government, an account of the Provident Fund established under Rule 3 shall, at the discretion of the Board, be opened in the Government Treasury.

(2)

Where an account of the Provident fund is opened in the Government Treasury, the interest payable on the amount in deposit to the-credit of a subscriber shall be paid by the State Government.

6.

Account of subscribers.

(1)

The Board shall maintain in Form I in respect of each one of the subscribers a personal ledger account.

(2)

In the personal ledger account, there shall be credited -

(a)

in respect of an employee appointed under Section 6 of the Act -

(i)

all subscriptions made by the subscriber and the Board under these rules;

(ii)
all deposits made by the subscriber in repayment of advance under Rule 11 and Rule 12;

(iii)
all the amount if any, standing to the credit of the subscriber in a Provident Fund under the control of the Board immediately before the commencement of these rules; and

(iv)
interest, if any, accruing due on the amounts hereinbefore mentioned.

(b)
in respect of an employee transferred under Section 9 of the Act, -

(i)
all subscriptions made by the subscriber and the Board under these rules;

(ii)
all deposits made by the subscriber in repayment of advances under Rule 11 and Rule 12;

(iii)
the amount, if any, in a Provident Fund maintained by local body and transferred to the Board under sub-section (5) of Section 9 of the Act;

(iv)
the amount, if any, standing to the credit of the subscriber in a Provident Fund under the control of the Board immediately before the commencement of these rules; and

(v)
interest, if any, accruing due on the amounts hereinbefore mentioned.

7.

[Procedure on death of subscriber.

[Substituted by Notification No. 105/XV-5-92-480-74, dated 10.3.1995 (w.e.f. 10.3.1995).]

- On the death of a subscriber before the amount standing to his credit has become payable, or where the amount has become payable before payment has been made, the amount at the credit of the subscriber shall be paid in the following manner -

(i)
when the subscriber leaves a family; and -

(a)
if a nomination made by a subscriber in accordance with the provisions of Rule 13 or of the corresponding rule heretofore in force, in favour of a member or members of his family subsists, the amount standing to his credit in the Fund or the part thereof to which the nomination relates shall become payable to his nominee or nominees in the proportion specified in the nomination;

(b)
if no such nomination in favour of a member of the family of the subscriber subsists, or if such nomination related only to a part of the amount standing in his credit in the Fund, the whole amount or the part thereof to which the nomination does not relate, as the case may be, shall notwithstanding any nomination purporting to be in favour of any person or persons other than a member or members of his family become payable to the members of his family in equal shares :
Provided that no share shall be payable to -

(1)
sons who have attained majority;

(2)
sons of a deceased son who have attained majority;

(3)
married daughters whose husbands are alive;

(4)
married daughters of a deceased son whose husbands are alive.

If there is any member of the family other than those specified in clauses (1), (2), (3) and (4) :

Provided further that the widow or widows and the child or children of a deceased son shall receive between them in

equal parts only the share which that son would have received if he had survived the subscriber and had been exempted from the provisions of clause (1) of the first proviso.

Note. - (1) Any sum payable under this rule to a member of the family of a subscriber vests in such member under sub-section (2) of Section 3 of the Provident Funds Act, 1925.

Note. - (2) When a nominee is a dependent of the subscriber as defined in clause (c) of Section 2 of the Provident Funds Act, 1925, the amount vests in such nominee under sub-section (2) of Section 3 of the Act.

(ii)

when the subscriber leaves no family, if a nomination made by him in accordance with the provisions of Rule 13 or of the corresponding rule heretofore in force in favour of any person or persons subsists the amount standing to his credit in the Fund or the part thereof to which the nomination relates, shall become payable to his nominee or nominees in the proportion specified in the nomination.

(iii)

when the subscriber leaves no family and no nomination made by him in accordance with the provisions of Rule 13, subsists, or if such nomination relates only to part of the amount standing to his credit in the Fund, the relevant provisions of clause (b) and of sub-clause (ii) of clause (c) of sub-section (1) of Section 4 of the Provident funds Act, 1925, shall be applicable to the whole amount or the part thereof, to which the nomination does not relate].

8.

Bar to payments in certain cases.

- Notwithstanding anything contained in Rule 7, where the Board has received notice of an assignment or encumbrance affecting the disposal of the amount in deposit of a subscriber it may withhold payment of the whole or part of such amount to the subscriber (and the amount so withheld shall be disbursed in accordance with the directions of the authority empowered to deal with such assignment or encumbrance).

9.

[Temporary advance.]

[Substituted by Notification No. 4585/XV(5)-480-74-UPA-34-1972-Rule-1975-AM(1)-78, dated 10.7.1979 (w.e.f. 10.7.1979).]

- [(1) If the appointing authority is satisfied that the pecuniary circumstances of a subscriber are such as to justify an action under this rule, it may, on the application of the subscriber, allow to him out of the Provident fund a temporary advance to the extent mentioned below -

(a)

not exceeding 12 months' pay or one-half of the amount at the credit of the subscriber in the Provident Fund on the date of the application, whichever is less, for the construction or purchase of a house; or

(b)

not exceeding 6 months' pay or one-half of the amount at the credit of the subscriber in the Provident Fund on the date of the application, whichever is less, to meet the expenses in connection with the marriage of the subscriber or his daughter or son; or

(c)

not exceeding three months' pay or one-half of the amount at the credit of the subscriber in the Provident Fund on the date of the application, whichever is less, to meet expenses for purposes other than those mentioned in clauses (a) and (b) above.]

(2)

No advance shall be made under the foregoing clause (c) unless it is required to meet expenses in connection with -

(a)

the illness, confinement or disability of a subscriber or a member of his family; or

(b)

the funeral or other ceremony which it is obligatory on the subscriber to perform; or

(c)

the education of a person wholly dependant on the subscriber; or

(d)

any other tiring which, having regard to all the circumstances, is considered by the appointing authority to be reasonable and unavoidable.

(3)

Where an advance has already been granted to a subscriber, no advance shall be made under sub-rule (1) until the complete repayment of the last advance taken.

9A.

[Withdrawal from the Fund.

[Inserted by Notification No. 105/XV-5-92-480-74, dated 10.3.1995 (w.e.f. 10.3.1995).]

(1)

Subject to the conditions specified herein, final withdrawals which will not be repayable may be sanctioned by the authorities competent to sanction an advance for special reasons under Rule 9 at any time as follows :]

[Substituted by Notification No. 4351/XV-5-97-480-74, dated 10.7.1997 (w.e.f. 10.7.1997).]

Note. - Application for final withdrawal from the Provident Fund shall be in Form 4.

(A)

After the completion of twenty years of service (including period of suspension followed by reinstatement and other broken period of service, if any) of a subscriber or within ten years before the date of his retirement on superannuation, whichever be earlier, from the amount standing to his credit in the fund, for one or more of the following purposes, namely -

(i)

Meeting cost of higher education, including where necessary the travelling expenses of the subscriber or any dependant child of the subscriber in the following cases namely -

(a)

education outside India for academic, technical, professional or vocational course beyond the High School stage; and

(b)

medical, engineering or other technical or specialised course in India beyond the High School stage.

(ii)

meeting the expenditure in connection with the marriage of the subscriber's sons or daughters and any other relation actually dependant on him;

(iii)

meeting the expenses in connection with the illness, confinement or disability including where necessary the travelling expenses of the subscriber, members of his family or any other person actually dependant on him.

(B)

After the completion of twenty years of service (including periods of suspension followed by reinstatement and other broken periods of service, if any) of subscriber or within ten years before the date of his retirement on superannuation, whichever be earlier, and subject to the restrictions in respect of pay in force for the eligibility of advances for the purchase of a motor car, motor cycle or scooter (including moped) under the rules in the Financial Handbook, Volume V, Part I, from the amount standing to his credit in the Fund, for one or more of the following purposes, namely :-

(i)

purchasing a motor car, motor cycle or scooter (including moped) or for repaying an advance already taken for the purpose under the rules in the Financial Handbook, Volume V, Part I;

(ii)

extensive repairs or overhauling of his motor car, motor cycle or scooter.

(C)

After the completion of fifteen years of service (including period of suspension of followed by reinstatement and other broken periods of service, if any) of a subscriber or within ten years before the date of his retirement on superannuation, whichever be earlier, from the amount standing to his credit in the Fund for one or more of the following purposes, namely :

(i)

Building or acquiring a suitable house or ready built flat for his residence including the cost of the site;

(ii)

Repaying an outstanding amount on account of loan expressly taken for building or acquiring a suitable house or ready built flat for Iris residence;

(iii)

Purchasing a site for building a house for his residence or repaying any outstanding amount on account of loan expressly taken for this purpose;

(iv)

Reconstructing or making additions or alterations to a house or a flat already owned or acquired by a subscriber;

(v)

Renovation, additions or alterations for upkeep of an ancestral house;

(vi)

Constructing a house on a site purchased under sub-clause (iii).

(D)

After the completion of three years of service (including periods of suspension followed by reinstatement and other broken periods of service, if any) of a subscriber from the amount standing to his credit in the Fund for the purpose of paying premium/premia of policies of his insurance, not exceeding, four, including existing policies hitherto being financed from the Fund, effected by the subscriber on his own life or on the joint lives of the subscriber and his/her wife or husband.

(E)

Within twelve months before the date of the subscriber's retirement, from the amount standing to his credit in the Fund for the purpose of acquiring a farm land or business premises or both.

Note 1. - Only one withdrawal shall be allowed for the same purpose under this rule but marriage of different children or illness on different occasions or a further addition or alteration to a house or flat covered by a fresh plan duly approved by the municipal body of the area where the house or flat is situated or payment of premium/premia of policies of life insurance and education of children in different years shall not be treated as the same purpose. If two or more marriages are to be celebrated simultaneously the amount admissible in respect of each marriage will be determined as if the withdrawals are sanctioned separately one after the other.

Note 2. - Second or subsequent withdrawal under sub-clause (a) or (b) of clause (c) for completion of the same house shall be allowed up to the limit laid down under Note 5.

Note 3. - Only one withdrawal shall be allowed in a year for the payment of premium/premia of all policies of life insurance.

Note 4. - A subscriber who has availed himself of an advance for house/building purpose under the rules in the Financial Handbook, Volume V, Part I or has been allowed any assistance in this regard from any other Government source, shall be eligible for the grant of final withdrawal under sub-clauses (i), (iii), (iv), (vi) of clause (c) for the purposes specified and also for the purpose of repayment of any loan taken under the aforesaid rules subject to the limit specified in sub-rule (1) of Rule 9-B.

Note 5. - The house, flat or site for a house for which the amount, as aforesaid is proposed to be withdrawn shall be situated at the place of duty of the subscriber or his intended place of residence after retirement. If a subscriber has an ancestral house or built a house at a place other than the place of his duty with the assistance of loan taken from the Government, he shall be eligible for the grant of a final withdrawal under sub-clauses (i), (iii) and (vi) of clause (c) for purchase of a house site or for construction of another house or for acquiring a ready built flat at the place of his duty.

Note 6. - Withdrawal for the purposes specified in clause (c) shall be sanctioned after the sanctioning authority has satisfied itself that -

(i)

the amount is actually required for the purpose mentioned by the subscriber;

(ii)

the subscriber possesses or intends to acquire forthwith the right to build a house on the proposed site;

(iii)

the amount withdrawn together with such other private savings, if any, as the subscriber may have, would be sufficient to build, acquire or redeem the house of the type proposed;

(iv)

in the case of withdrawal for the purchase of a house site, house or ready built flat, the subscriber will secure an undisputed title to the house site, house or flat including the site;

(v)

for the purposes referred to in clause (iv) above, the subscriber has produced necessary deeds and papers to the

sanctioning authority proving his title in respect of the property in question.

Note 7. - The amount proposed to be withdrawn under sub-clause (ii) of clause (c) together with the amount previously withdrawn, if any, under sub-clause (i) shall not exceed $\frac{3}{4}$ th of the balance on the date of application.

Note 8. - Withdrawal under sub-clause (i) or (iv) of clause (c) shall also be allowed where the house site or house is in the name of wife or husband provided she or he is the first nominee to receive Provident Fund money in the nomination made by the subscriber.

Explanation 1. - Where a subscriber already owns a house site or a house or a flat, other than such share in a joint property as is not suitable for independent residential purpose he will not be sanctioned a withdrawal for the purchase, building, acquisition or redemption of a house site or a house, or a flat, as the case may be.

Explanation 2. - Withdrawal may also be allowed for acquiring or building a house on a plot of land on lease from local bodies.

Explanation 3. - Withdrawal is permissible for repayment of any sort of loan taken for house building purposes whether the same has been taken from a private party or from Government under the Financial Handbook, Volume V, Part I or under the low or Middle Income Group Housing Scheme.

Note 9. - Subject to the monetary limits laid down in clause (b) of sub-rule (1) of Rule 9-B, a withdrawal for the purchase of a motor car, motor cycle or scooter (including moped) may also be allowed when the subscriber has already taken an advance for the same purpose under the rules in the Financial handbook, Volume V, Part 1 provided that the total amount from both these sources does not exceed the actual price of the motor car, motor cycle or scooter, as the case may be.

Note 10. - The Life Insurance policies in respect of which withdrawal are sanctioned under clause (d) should not have been effected for the benefit of any beneficiary other than the wife or husband of the subscriber or the wife or husband and children of the subscriber or any of them.

Note 11. - A withdrawal under this rule shall not be sanctioned if an advance under Rule 9 is being sanctioned for the same purpose and at the same time.

(2)

Whenever a subscriber is in a position to satisfy the competent authority about the amount standing to his credit in the Fund with reference to his Provident Fund pass-book or the latest available statement of Provident Fund Account issued under sub-rule (16) together with the evidence of subsequent subscriptions, the competent authority may sanctioned withdrawal within the prescribed limit. In doing so, the competent authority shall take into account any withdrawal or advance already sanctioned in favour of the subscriber. The sanction for tire withdrawal must indicate the Provident Fund Account number and a copy thereof be endorsed to the Drawing and Disbursing Officer maintaining the Provident Fund pass-books as well as to the Accounts Officer.

(3)

Ordinarily no withdrawal will be sanctioned to a subscriber during the last six months preceding his retirement on superannuation. In special cases in which the sanction of such a withdrawal is unavoidable, it may be sanctioned, but it will be the responsibility of the sanctioning authority to ensure that such a sanction is promptly notified to the Accounts Officer in the case of a Group 'D' employee and to the drawing and disbursing Officer and the Accounts Officer in the case of other subscribers, and acknowledgement thereof obtained from them without any delay. It will also be ensured by the above authorities that the amount of withdrawal is duly adjusted against the amount to be paid to the subscriber under Rule 7.

9B.

[Conditions for withdrawal.

[Inserted by Notification No. 105/XV-5-92-480-74, dated 10.3.1995 (w.e.f. 10.3.1995).]

(1)

(a)

Any sum withdrawn by a subscriber at any one time for one or more of the purposes specified in clause (a), (c), (d) or (e) of Rule 9-A from the amount standing to his credit in the Fund shall not ordinarily exceed one-half of such amount or six months' pay whichever is less. In special cases the sanctioning authority may however, sanction the withdrawal of an amount in excess of this limit up to $\frac{3}{4}$ th of the balance at his credit in the Fund having due regard to (i) the object for which the withdrawal is being made, and (ii) the amount to his credit in the Fund :

Provided that in no case the amount of withdrawal for purposes specified in sub-clauses (iv) and (v) of clause (c) of

sub-rule (1) of Rule 9-A shall exceed Rs. 40,000.

Note 1. - In the case of construction of a house, if the amount of withdrawal exceeds Rs. 40,000 it will ordinarily be permitted to be drawn in two instalments. However, if the subscriber applies for the entire amount of withdrawal to be released in one instalment and the sanctioning authority is satisfied with the justification given therefor, the entire amount may be released accordingly. The sanction will be issued for the entire amount of the withdrawal and if it is to be drawn in instalments, the number thereof will be specified in the sanctioning order.

Note 2. - For outright purchase of a site, house or flat, or for the repayment of a loan taken for the purpose, the withdrawal may be allowed in one instalment. In cases where a subscriber has to pay in instalments for a site or a house or flat purchased, or a house or flat constructed under a scheme, including a Self-Financing Scheme of a Development Authority, Housing Board, Local Body or House Building Co-operative Society, he shall be permitted to make a withdrawal as and when he is called upon to make a payment of any instalment, every such payment shall be treated as a payment for a separate purpose for the purposes of sub-rule (1) of Rule 9-A.

(b)

The amount of withdrawal for the purposes specified in sub-clause (i) of clause (b) of sub-rule (1) of Rule 9-B shall be limited to Rs. 50,000 or one-half of the amount standing to the credit of the subscriber in the Fund or the actual price of the motor car, motor cycle or scooter (including moped), as the case may be, whichever is the least.

(c)

The amount of withdrawal for the purposes specified in sub-clause (ii) of clause (b) of sub-rule (1) of Rule 9-A shall be limited to Rs. 5000 or one-half of the amount standing to the credit of the subscriber in the Fund or the actual amount of repairing or overhauling, whichever is the least.

(2)

A subscriber who has been permitted to withdraw money from the Fund under Rule 9-A shall satisfy the sanctioning authority within a reasonable period as may be specified by that authority that the money has been utilised for the purpose for which it was withdrawn, and if he fails to do so, the whole of the sum so withdrawn or so much thereof as has not been utilised for the purpose for which it was withdrawn, shall forthwith be repaid in one lump sum by the subscriber to the fund and in default of such payment, it shall be ordered by the sanctioning authority to be recovered from his emoluments either in a lump sum or in such number of monthly instalments, as may be determined.

Note 1. - The withdrawal for marriage shall be utilised within three months.

Note 2. - The construction of the house shall be commenced within six months of withdrawal of money and should be completed within a period of one year from the date of commencement of construction. However, if the house is to be purchased or redeemed or a private loan previously raised for the purpose has to be repaid, this should be done within three months of the withdrawal.

Note 3. - The house site shall be purchased within a period of one month of the withdrawal or the withdrawal of the first instalment, as the case may be.

In fulfilment of this condition, the sanctioning authority may require the production of receipts issued by the seller, the house building society etc., in token of the amount of the withdrawal/instalments having been utilised for making payment towards purchase of the site.

Explanation. - The actual expenditure incurred in connection with sale or transfer deeds may be reckoned as part of the cost of the house or house site.

Note 4. - The withdrawal for an insurance policy shall be utilised by the date on which premium was due to be paid and the subscriber shall be required to produce attested or photostat copy of the receipt issued by the Life Insurance Corporation failing which no further withdrawal for this purpose shall be permitted.

(3)

A subscriber who has been permitted under sub-clauses (i), (ii) or (iii) of clause (c) of sub-rule (1) of Rule 9-A to withdraw money from the amount standing to his credit in the Fund shall not part with the possession of the house built or acquired or house site purchased with the money so withdrawn, whether by way of sale, mortgage (other than mortgage to the Governor), gift, exchange or otherwise, without the previous permission of the Governor :

Provided that such permission shall not be necessary for -

(i)

the house or house site being leased for any term not exceeding three years; or

(ii)

its being mortgaged in favour of a Housing Board, Development Authority, Local Body, Nationalised Bank, the life Insurance Corporation or any other corporation owned or controlled by the Central or the State Government which advances loans for the construction of a new house or for making additions or alterations to an existing house.]

9C.

[Conversion of an advance into a withdrawal.

[Inserted by Notification No. 105/XV-5-92-480-74, dated 10.3.1995 (w.e.f. 10.3.1995).]

- The authority competent to sanction an advance under Rule 9 may, on a written request from a subscriber who has earlier drawn an advance under Rule 9 for a purpose for which a final withdrawal is also admissible under these rules, convert the outstanding balance of the advance into a final withdrawal, subject to the fulfilment of conditions laid down in Rules 9-A and 9-B.

Note 1. - The Drawing and Disbursing Officer shall on receipt of information from the competent authority mentioned above, regarding conversion of an advance into a final withdrawal, stop recovery from the pay bills. In the case of subscribers who are self-drawing officers, of the competent authority shall endorse a copy of the order regarding such conversion to the Treasury Officer from where the subscriber draws his pay in order to enable the former to stop further recoveries. In every case of conversion the competent authority shall endorse a copy of his order to the Accounts Officer also.

Note 2. - The amount of an advance to be converted into a withdrawal shall not exceed the limits laid down in sub-rule (1) of Rule 9-B and for this purpose the balance in the account of the subscriber at the time of conversion plus the outstanding amount of advance shall be taken as the balance at his credit in the Fund. Each withdrawal shall be treated as a separate one and the same principle shall apply in the event of more than one conversion.]

10.

Advance for investment in national development scheme, etc.

- The appointing authority may relax the restrictions laid down in Rule 9 and may, subject to such terms and conditions (including conditions as to repayment, if any) as he may consider necessary to impose, allow an advance to a subscriber for subscribing to any loan floated or financial scheme launched by the Central Government or the State Government for nation building purposes.

11.

[Recovery of advances.

[Substituted by Notification No. 4585/XV(5)-480-74-UPA-34-1972-Rule-1975-AM(1)-78, dated 10.7.1979 (w.e.f. 10.7.1979).]

(1)

Any amount paid to a subscriber under Rule 9 shall be recovered from him as under -

(a)

in not more than twenty-four instalments in case of advance up to three months' pay;

(b)

in not more than thirty-six instalments in case of advance up to six months pay; and

(c)

in forty-eight instalments in case of advance up to twelve months' pay by compulsory deductions from his pay and this shall be in addition to the subscription made by him under sub-rule (1) of Rule 4 :

Provided that a subscriber may at his option make repayments in less than twenty-four or thirty-six or forty-eight instalments, as the case may be, or may repay two or more instalments at a time.

(2)

The deductions under sub-rule (1) shall be made monthly commencing from the first payment of a full month's pay after the advance has been drawn and paid.]

12.

Recovery of interest.

(1)

A subscriber shall pay interest at the rate of 1/5 per cent per months on the amount paid to him under Rule 9 for the period from the date of payment to the date of its complete repayment in accordance with Rule 11 :

Provided that Muslim subscribers whose deposits in the Provident Fund carry no interest shall not be required to pay into that fund any additional instalments on account of interest.

(2)

Interest shall ordinarily be recovered in one instalment in the month after complete repayment of the principal, but if the period referred to in sub-rule (1) exceeds twenty months, shall if the subscriber so desires, be recovered in two equal monthly instalments.

13.

Nominations.

(1)

Each subscriber shall, as soon as possible after he joins the Provident Fund, be called upon by the appointing authority to furnish a declaration in Form No. 2 specifying the persons to whom and the manner in which the amount to the credit of the subscriber shall be paid on his death.

(2)

A declaration made under sub-rule (1) may be revised from time to time and the fresh declaration shall be operative in place of the declaration immediately preceding it from the date on which it is received by the appointing authority.

(3)

All such declarations as are in force shall be carefully recorded in the personal custody of the appointing authority.

14.

Bar to payment in certain cases.

(1)

The Board may, in the case of an employee dismissed from service, withhold all or any part of the contribution made by the Board to his account together with the interest accrued thereon.

(2)

Any amount withheld under sub-rule (1) shall be withdrawn from the Provident Fund amount and credited to the Basic Education Fund.

15.

Forfeiture of subscription.

- The amount subscribed by an employee to the Provident Fund shall not be liable to forfeiture on dismissal or on conviction by a criminal court except for an offence for which the penalty of forfeiture of the whole of the offender's property is prescribed by law.

16.

Statement of account to be furnished.

(1)

As soon as possible, after the close of the year a statement in Form 3 shall be furnished to every subscriber.

(2)

The subscriber shall satisfy himself as to the correctness of such statement and unless errors therein are brought to the notice of the appointing authority within one month from the date of the receipt of the statement, the appointing authority or the Board shall not be responsible for any error or omission in the statement.

17.

Subscription during leave.

- An employee shall not be eligible to subscribe to the Provident fund while absent on leave other than privilege leave or leave on average pay under the rules governing the leave of such employee.

18.

Closure of account.

- On a subscriber leaving the service of the Board, his account shall be closed and unless the amount at his credit be withdrawn within one year, the account shall be written off as a dead account and shall be dealt with in accordance with the rules applicable to such account.

19.

Investment in securities.

- Notwithstanding anything contained in these rules, the Board may withdraw any money from the Provident Fund and may invest the amount so withdrawn in postal cash certificates, cumulative time-deposit or other Government securities : Provided that an amount equal to the largest amount drawn in any one month during the last five years under these rules is retained in the Provident Fund.

20.

Direction as to payment for Basic Education Fund.

- If at any time, the amount required for payment under these rules exceeds the balance held in deposit in the Provident Fund account, the excess amount shall be paid from the Basic Education Fund and shall be subsequently recovered from the subscriptions made under these rules.

21.

Application to temporary employees.

- The Board may, with the previous approval of the State Government, direct that these rules shall also apply to any class or classes of temporary employees of the Board.

Form I

[See Rule 6]

Provident Fund Ledger

Account of Provident Fund transactions of Basic Education Board for the month of.....19

By whom deposited

Credits

Name of depositor

Official designation

Date of receipt

Opening balance

Deposit

Interest added at the end of each year

Total

1

2

3

4

5

6

7

March paid

in April

May

June

July

August

September

October

November

December

January

February

March

Date of payment

Debits

Remarks

On what account

Credited to board or transferred to another provident fund

Paid to depositor

Total payments

Closing balance

Total amount bearing interest

8
9
10
11
12
13
14

March paid in April

May

June

July

August

September

October

November

December

January

February

March

Form II

[See Rule 13]

The Basic Education Board Provident Fund

Depositor No.....

Form Of Declaration

([Form])

[Here state married or unmarried]

.....depositor)

I hereby declare that in the event of my death the amount at my credit in the Basic Education Board shall be distributed among the persons mentioned below in the manner shown against their names.

The amount due to nominee who is a minor at the time of my death should be paid to the person whose name appears in Column 5 :-

Name and address of the nominee or nominees

Relationship with the depositor

Whether major or minor, if minor, state his age

Amount or share of deposit

Name and address of the person to whom payment is to be made on behalf of the minor

Sex and parentage of person mentioned in Column 5

1
2
3
4
5
6

Station.....Two witnesses to signature

Date.....

Signature of depositor.

.....

Form III

Broad-sheet for calculating the interest due to each depositor

Name of depositor

Opening Balance

Year's
Deposits
Withdrawals Interest
April
May
June
July
August
September
October
November
December

January
February
March

Total.....

[Form IV]

[Inserted by Notification No. 105/XV-5-92-480-74, dated 10.3.1995 (w.e.f. 10.3.1995).]

[See Rule 9-A(1)]

Form of Application for Final Withdrawal from the Provident Fund

Name of the Office.....

1. Name of Subscriber.....

2. Account number with departmental prefix.....

3. Designation.....

4.

Pay.....

5. Date of entry in service and date of superannuation.....

6. Details of the amount deposited in the account of the subscriber on the date of the application :

(i)
according to Account slip/Provident Fund ledger of the year.....amount deposited.....

(ii)
amount deposited by contribution from month.....to month.....

(iii)
amount deposited by refund of advance.....

(iv)
details of the amount withdrawn -

(A)
final withdrawal from month/year.....to month/year.....

(B)
temporary advance from month/year.....to month/year.....

7. Amount required for final withdrawal.....

8. (A) Purpose of final withdrawal.....

(B)
Rule/Government Order under which application is being made.....

9. Whether for this purpose any final withdrawal was taken previously, if so mention the amount and the year.....
Date.....

Signature of application

Name.....

Designation.....

Office/Vidyalaya.....

Related AI tags, queries and research notes

Translation